

26CHCV00682 26CHCV00682

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-08-03

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DEFENDANT VICTOR TANKAZYAN'S DEMURRER TO COMPLAINT AND
DEFENDANT DUDA ADAMS'S JOINDER

Motion filed on April 29, 2026.

MOVING PARTY: Defendant Victor Tankazyan, joined by
Defendant Duda Adams

RESPONDING PARTY: Plaintiff Suraiya Zoobi Ahmed

NOTICE: OK.

RELIEF REQUESTED: An order sustaining demurrers to the first
through fourth causes of action for uncertainty and failure to state facts
sufficient to constitute a cause of action.

RULING: Overruled.

BACKGROUND

Suraiya Zoobi Ahmed (Plaintiff) filed the Complaint on
February 19, 2026, asserting causes of action for attempted illegal eviction

and tenant harassment, interference with quiet enjoyment, trespass and unauthorized entry, and injunctive and declaratory relief. Victor Tankazyan (Tankazyan) filed the demurrer on April 29, 2026, supported by the declaration of Gary Kurtz. Duda Adams (Adams) filed a notice joining the demurrer on the same date. No timely opposition was filed.

LEGAL STANDARD

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

DISCUSSION

Scope of Demurrer

The notice identifies Tankazyan as the defendant seeking relief, and Adams separately joined the demurrer. Although V&A Construction, Inc. appears in counsel's signature block, it did not file a notice of demurrer or a joinder. The Court therefore considers the demurrer only as to Tankazyan and Adams.

Uncertainty

California Rules of Court, rule 2.112(4) requires each cause of action to specifically state “[t]he party or parties to whom it is directed.” Failure to comply with rule 2.112 may render a complaint subject to a special demurrer for uncertainty. (Grappo v. McMills (2017) 11 Cal.App.5th 996, 1014.) A demurrer for uncertainty should nevertheless be overruled where the substantive allegations sufficiently apprise the defendant of the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.)

Here, none of the cause-of-action headings identifies the defendant or defendants against whom the claim is directed. The allegations also shift between “Defendants” collectively and the singular possessive “Defendant’s.” (Compl. ¶¶ 22-29, 31-36, 38-49.)

Read as a whole, however, the Complaint sufficiently indicates that each cause of action is asserted against all Defendants. Plaintiff alleges that Adams claimed ownership or control of the property and authorized or ratified the challenged conduct, Tankazyan exercised control over V&A and authorized or ratified the conduct of its workers, and V&A acted through its workers and agents. Plaintiff also alleges that each Defendant acted as the agent, employee, co-conspirator, or representative of the others. (Compl. ¶¶ 5-9.) The causes of action repeatedly attribute the conduct to “Defendants,” and the prayer seeks relief against “Defendants, and each of them.” (Compl. ¶¶ 22-26, 32, 38, 41, 46-49, Prayer.)

The singular references are imprecise, but in context they do not create a reasonable ambiguity concerning which defendants are being sued. Unlike the complaint addressed in *Grappo*, this Complaint identifies the defendants, alleges their respective roles, and describes their asserted relationships to one another. The failure to comply with rule 2.112 does not substantially impair Tankazyan’s or Adams’s ability to understand the claims or determine what must be admitted or denied. The special demurrers for uncertainty are overruled.

First Through Third Causes of Action

Moving Parties do not identify any element of the first, second, or third cause of action that is insufficiently alleged. They argue only that Plaintiff fails to specify “who allegedly did what and when” and to identify the individual workers, their authority, and whether they acted within the scope of that authority. (Dem. at 3, 8.) That argument substantially repeats the lack-of-specificity challenge raised in support of uncertainty and does not establish that the first three causes of action fail to state facts sufficient to constitute a cause of action.

The general demurrers for the first through third causes of action are overruled.

Fourth Cause of Action

An injunction is a remedy, not an independent cause of action. (Church Mut. Ins. Co., S.I. v. GuideOne Specialty Mut. Ins. Co. (2021) 72 Cal.App.5th 1042, 1051, fn. 1.) Declaratory relief requires “(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party’s rights or obligations.” (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909.)

Here, the fourth cause of action incorporates paragraphs 1 through 43. Plaintiff alleges that Defendants treated her as an unauthorized occupant, attempted to exclude her from the property without lawful process, demanded that she vacate, and may continue attempting to change the locks, obstruct access, or otherwise interfere with her possession. Plaintiff seeks a declaration that Defendants may not remove her or interfere with her possession without complying with lawful eviction procedures. (Compl. ¶¶ 17-20, 44-49.)

Moving Parties do not explain why a declaration would be unnecessary or improper under Code of Civil Procedure section 1061 as a matter of law. Although injunctive relief is not an independent cause of action, the fourth cause of action adequately alleges declaratory relief. A general demurrer does not lie to only part of a cause of action. (PH II, Inc. v. Superior Court (1995) 33 Cal.App.4th 1680, 1682-1683.) The general demurrer to the fourth cause of action is overruled.

The general demurrer to the fourth cause of action is overruled.

CONCLUSION

The special demurrers for uncertainty and the general demurrers for failure to state facts sufficient to constitute a cause of action are overruled.

Tankazyán and Adams shall file and serve their answers within 10 days after service of notice of ruling.

The Court does not rule on behalf of V&A Construction, Inc.